

25VECV00023 25VECV00023

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-13

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Case Number: 25VECV00023 Hearing Date: August 13, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANTHONY SANCHEZ,

Plaintiff,

vs.

PROVIDENCE HOLY CROSS MEDICAL

CENTER; CORRINE KVAMME, M.D.;

EVAN VALLE, M.D.; RAMIN

GANJIANPOUR, M.D.; AZMI ATIYA,

M.D.; DONALD DESANTO II, M.D.; NEIL

SARDESAI, M.D.; AND DOES 1 through

100, inclusive,

Defendants.

CASE NO: 25VECV00023

ORDER

RE:

DEFENDANT

NEIL SARDESAI, M.D.'S

MOTION

FOR SUMMARY JUDGMENT

Dept. W

8:30 a.m.

August 13, 2026

The

ORDER: The Court GRANTS Moving Defendant's Motion for Summary Judgment.

Background

This is a medical malpractice case. On October 12, 2022, Plaintiff Anthony Sanchez was severely injured when his girlfriend drove her car into him, pinning his legs against a second, stationary vehicle. Plaintiff was admitted to Defendant Providence Holy Cross Medical Center for treatment for his injuries. Plaintiff was treated by multiple doctors, including Moving Defendant Neil Sardesai, an orthopedic surgeon.

Plaintiff underwent multiple separate surgeries during his admission to Providence Holy Cross. First, on October 13, 2022, doctors performed a femoral bypass graft on Plaintiff's left knee in an attempt to restore blood flow to Plaintiff's foot. On October 18, 2022, doctors, including Moving Defendant, once again operated on Plaintiff's left leg. Then, on October 22, 2022, doctors "revascularized" Plaintiff's left leg, as it was still not receiving enough blood flow. Finally, on October 23, 2022, doctors performed a vascular bypass surgery on the leg. Unfortunately, the blood flow to Plaintiff's leg was not restored. As a result, the leg had to be amputated. Moving Defendant Sardesai participated only in the October 18, 2022 surgery as an assistant surgeon.

On January 2, 2024, Plaintiff brought suit against Moving Defendant Neil Sardesai, five other doctors who treated him, and Providence Holy Cross Medical Center. Plaintiff alleges a single cause of action for professional negligence. Plaintiff claims that Moving Defendant failed to restore blood flow to his left leg, which resulted in the need for amputation.

Moving Defendant Sardesai moves for summary judgment as to this claim of professional negligence.

Discussion

Moving Defendant Neil Sardesai moves for summary judgment as to this claim of professional negligence, arguing that Plaintiff cannot establish that Moving Defendant breached the applicable standard of care. (MSJ, p. 16:3-5.)

In analyzing a motion for summary judgment, courts must, 1) determine whether the moving party has negated the opponent's claims; and 2) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (CCP § 437(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741.)

i)

Moving Defendant's Initial Burden

The Court can quickly conclude that Moving Defendant has met his initial burden and that there is no dispute of material fact. When a plaintiff alleges professional negligence, and a defendant is accused of failing to adhere to accepted standards of practice, the issues of standard of care and causation may be established only by qualified expert testimony. (Stevenson v. Kaiser Foundation Hosp. (1962) 203 Cal.App.3d 631 [emphasis added].) This is a professional negligence case, (Compl. p. 1.), therefore, Stevenson applies.

Moving Defendant provides the expert declaration of Dr. Serge Kaska. (Kaska Decl.) Dr. Kaska has been licensed to practice medicine for 27 years. (Id. ¶ 2.) He is board certified in Orthopedic Surgery and completed a fellowship in Problem Fracture

and Limb Deformity at the California Pacific Medical Center in San Francisco in 2006. (Ibid.) Dr. Kaska also provides a copy of his CV establishing his extensive experience in the field. (Id. Ex. 1.) Dr. Kaska states that he is familiar with the applicable standard of care for orthopedic surgeons, like Moving Defendant. (Id. ¶ 4.)

Based on his review of Plaintiff's medical records, the Complaint, Plaintiff's deposition, Plaintiff's responses to discovery requests, and his extensive training and experience, Dr. Kaska concludes that, "to a reasonable medical probability . . . NEIL SARDESAI, M.D. met the standard of care of orthopedic surgeons practicing in the State of California in 2022 in all respects in the care and treatment provided to ANTHONY SANCHEZ." (Id. ¶ 9.)

Under California case law, an expert's opinion rendered without a reasoned explanation of why the underlying facts lead to the ultimate conclusion has no evidentiary value. (Bushling v. Fremont Medical Center (2004) 117 Cal. App. 4th 493, 510.) Dr.

Kaska bases this conclusion on specific factual findings, such as, "Dr. Sardesai's involvement in Plaintiff's case was very limited. He was an assistant surgeon during the surgery performed on October 18, 2022, by Dr. Valle to relieve Plaintiff of his compartment syndrome that was diagnosed that day. There is no indication in the Operative Note as to what Dr. Sardesai specifically did during the procedure, but typically the assistant surgeon during this surgery would hold retractors, help with the wound vac, and otherwise follow the directions of the primary surgeon, Dr. Valle. All the surgical procedures and judgment decisions would have been made by Dr. Valle unless he specified otherwise in his Operative Note (he didn't)." (Id. ¶ 10.) Based on these specific facts, the Court concludes that Dr. Kaska's conclusions have evidentiary value and that Moving Defendant has met his initial burden to negate Plaintiff's claim of medical negligence.

ii)

Plaintiff's Shifted Burden

The burden now shifts to Plaintiff to establish a triable issue of fact as to both breach and causation. In the context of medical malpractice, when a defendant supports its motion for summary judgment with competent expert testimony that there was no breach of the standard of care, or that the doctor did not cause the plaintiff harm, the plaintiff must present conflicting expert testimony to defeat summary judgment. (Jambazian v. Borden (1994) 25 Cal.App.4th 836, 844; Munro v. Regents of University of California

(1989) 215 Cal.App.3d 977, 984.)

Plaintiff does not oppose this motion and therefore has not presented any conflicting expert testimony. Thus, Plaintiff fails to meet his shifted burden.

For these reasons, the Court GRANTS Moving Defendant's Motion for Summary Judgment.

Conclusion

The Court GRANTS Moving Defendant's Motion for Summary Judgment.

IT

IS SO ORDERED.

Moving Defendant TO GIVE NOTICE.

August 13, 2026